

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Section 331(1) of the Code of Criminal Procedure Act No. 15 of 1979, read with Article 138(1) of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Democratic Socialist Republic of Sri Lanka

Complainant

Court of Appeal Case No.:

CA/HCC/0023-24/2024

High Court of Hambantota Case

No: **HC/145/2019**

Vs

1. Weerasingha Pathiranage Lal Premasiri
2. Samarasekara Weersuriya Arachchige Sunethra

Accused

AND NOW BETWEEN

1. Weerasingha Pathiranage Lal Premasiri
2. Samarasekara Weersuriya Arachchige Sunethra

Accused – Appellant s

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before : **P. Kumararatnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Mohan Senevirthane with Sanuri Dissanayake for the 1st Accused – Appellant.
: Shaveendra Fernando PC with Nipun Samaratunga for the 2nd Accused-Appellant.
: Hiranjan Peiris, ASG for the Respondent.

Argued on : 10.06.2026 and 16.06.2026

Decided on : 17.09.2026

Pradeep Hettiarachchi, J

Judgment

1. The 1st and 2nd Accused-Appellants (hereinafter referred to as “the Appellants”) have preferred this appeal against the judgment and sentences dated 18.10.2023 of the learned High Court Judge of Hambantota.
2. The Appellants were indicted by the Attorney General on 6 counts, namely:
 - a. On or about 01.12.2011 to 31.12.2011, in Thissamaharama, within the jurisdiction of the High Court of Hambantota, the 1st Accused, by kidnapping a girl below 16 years of age named Paranamanage Lakshika Udayangani from her lawful guardian, Don Rajapaksha Wickramasuriya Sunimali, committed an offence punishable under Section 354 of the Penal Code;
 - b. On or about 10.12.2012, in the same place and during the same transaction, the 1st Accused, by kidnapping a girl below 16 years of age named Paranamanage Lakshika Udayangani from her lawful guardian, Don Rajapaksha

Wickramasuriya Sunimali, on an occasion other than the occasion referred to in the First Count, committed an offence punishable under Section 354 of the Penal Code;

- c. In the same transaction and during the same time period as mentioned in the Second Count, in Weeravila, within the jurisdiction of the High Court of Hambantota, the 1st Accused committed rape on the said Paranamanage Lakshika Udayangani, an offence punishable under Section 364(2)(e) of the Penal Code as amended by the Act No. 22 of 1995;
 - d. On or about 16.12.2012, in the same transaction, in Thissamaharama, within the jurisdiction of the High Court of Hambantota, the 1st Accused, by kidnapping a girl below 16 years of age named Paranamanage Lakshika Udayangani from her lawful guardian, Don Rajapaksha Wickramasuriya Sunimali, on an occasion other than the occasion referred to in the First and Second Counts, committed an offence punishable under Section 354 of the Penal Code;
 - e. In the same transaction and during the same time period as mentioned in the Fourth Count, in Debarawewa, within the jurisdiction of the High Court of Hambantota, the 1st Accused committed rape on the said Paranamanage Lakshika Udayangani, an offence punishable under Section 364(2)(e) of the Penal Code as amended by the Act No. 22 of 1995; and
 - f. In the same transaction and during the same time period and place as mentioned in the Fifth Count, the 2nd Accused aided and abetted the 1st Accused to commit the offence mentioned in the Fifth Count, an offence punishable under Section 102 read with Section 364 (2)(e) of the Penal Code.
3. At the conclusion of the trial, the learned High Court Judge found the 1st Appellant guilty of Counts 3, 4, and 5 and convicted him accordingly. However, he was acquitted of Counts 1 and 2. The learned High Court Judge sentenced the 1st Appellant to 15 years' rigorous imprisonment in respect of Counts 3 and 5. In addition, he was ordered to pay a fine of Rs. 10,000 in respect of each of Counts 3 and 5, with a default sentence of one year's imprisonment in respect of each fine. Furthermore, the 1st Appellant was

ordered to pay a sum of Rs. 50,000 to the prosecutrix as compensation, with a default sentence of two years' rigorous imprisonment. The sentences of 15 years' rigorous imprisonment imposed in respect of Counts 3 and 5 were ordered to run consecutively.

4. For Count 4, the 1st Appellant was sentenced to four years' rigorous imprisonment and ordered to pay a fine of Rs. 5,000, with a default sentence of six months' rigorous imprisonment.
5. The learned High Court Judge sentenced the 2nd Appellant to ten years' rigorous imprisonment and imposed a fine of Rs. 10,000, with a default sentence of one year's rigorous imprisonment, in respect of Count 6.
6. Being aggrieved by the said convictions and sentences, the Appellants have preferred the present appeals. The following grounds of appeal are advanced by the Appellants;
 - a. Does the impugned judgment satisfy the requirements stipulated in Section 283 of the Code of Criminal Procedure Act;
 - b. Was the Learned Judge of the High Court, who pronounced the impugned judgment, aware of the provision of Section 354 of the Penal Code;
 - c. Did the Learned High Court Judge engage in a serious analysis of the evidence given by PW1 during the course of the trial by applying standard tests that are being used to evaluate the evidence given by a witness before the court of law.
7. One of the grounds advanced on behalf of the 1st Appellant is that the impugned judgment does not comply with the requirements of Section 283 of the Code of Criminal Procedure Act. In this regard, it was contended that, in the absence of a conviction on Count 2, the 1st Appellant could not properly have been convicted on Count 3.
8. The impugned judgment largely consists of a narration and reproduction of the evidence, without proper analysis of the evidentiary material or a reasoned assessment of the findings arrived at. Such failure to evaluate the evidence and provide reasons in support of the conclusions reached is not in conformity with the requirements of Section 283 of the Code of Criminal Procedure Act.

9. According to the prosecutrix, the 1st Appellant had sexual intercourse with her for the first time at a place near her school. On the second occasion, the 1st Appellant took her to a house in Weerawila, where he had sexual intercourse with her.
10. It is significant to note that the learned High Court Judge acquitted the 1st Appellant of Counts 1 and 2. Count 2 charged the Appellant with kidnapping the prosecutrix from the lawful guardianship of her guardian, an offence alleged to have been committed on or about 10.01.2012. Count 3 was a charge of rape arising from the alleged kidnapping referred to in Count 2, namely, that the Appellant committed rape upon the prosecutrix after kidnapping her from lawful guardianship in the course of the same transaction.
11. The learned Trial Judge acquitted the 1st Appellant of Counts 1 and 2 for want of sufficient evidence.
12. Nevertheless, the learned Trial Judge expressly held that there was sufficient evidence to establish that the prosecutrix had been raped at Weerawila. In the circumstances, a question arises as to how the 1st Appellant could properly have been convicted on Count 3 when the underlying allegation of kidnapping from lawful guardianship, which formed an essential part of Count 3, had not been established. If there was insufficient evidence to sustain Count 2, on what basis could the learned Trial Judge conclude that the rape charged in Count 3 had been committed after the prosecutrix had been kidnapped from lawful guardianship?
13. These findings appear to be inconsistent. If there was insufficient evidence to establish the charge of kidnapping, it is difficult to understand how the learned Trial Judge could have concluded that the prosecutrix was raped at Weerawila, the very place to which, according to Count 2, she was alleged to have been kidnapped.
14. To elaborate further, the charge set out in Count No. 3 is that the prosecutrix was raped at Weerawila following the alleged kidnapping referred to in Count No. 2. If the learned Trial Judge found that there was insufficient evidence to establish that the prosecutrix had been kidnapped by the Appellant as alleged in Count No. 2, then, in my view, the finding on Count No. 3 also cannot be sustained, as that count specifically alleges that the rape was committed at Weerawila following the said kidnapping.

15. The inconsistent nature of the testimony of the prosecutrix is further evident from her narration of the sequence of events. In her evidence-in-chief, she testified that the 1st Appellant had intercourse with her for the first time at a house near the school.
16. Thereafter, she was taken to a house at Weerawila, where the 1st Appellant had intercourse with her. She further testified that the 1st Appellant again had intercourse with her at the house near the school.
17. These findings appeared to be mutually inconsistent. Having recognized that the prosecutrix's evidence regarding the sequence of events created a doubt. Therefore, the learned Trial Judge's conclusion that the Appellant committed the alleged offences lacks a proper evidentiary basis.
18. Having arrived at the aforesaid findings, the learned Trial Judge nevertheless proceeded to acquit the Appellant on the first and second counts, while convicting him on the third count, notwithstanding that all three counts arose from the same transaction. Such inconsistency in the reasoning process clearly demonstrates the lack of a proper analysis of the evidence and the irrational conclusions reached by the learned High Court Judge.
19. Furthermore, the charge against the 2nd Appellant was that she aided and abetted the 1st Appellant in committing the offence set out in the 4th count, namely, the rape of the prosecutrix on 16.01.2011. However, a careful examination of the testimony of the prosecutrix reveals that she had not seen the 2nd Appellant prior to the day on which the school authorities contacted her parents at her residence and informed them that she had not attended school. During cross-examination, the prosecutrix admitted that it was the first occasion on which she had spoken to the 2nd Appellant and that she had not seen her before.
20. The prosecutrix testified as follows:

“ප්‍ර: ඒ ගෙදර පෙර අවස්ථාවකදී 02 වන විත්තිකාරිය ඉන්නවා දැකලා තියෙනවද?

උ: දැකලා නෑ. ඔබට මේ 02 වන විත්තිකාරිය හමු වුනේ ඔබ සදහන් කල ආකාරයට පාසලෙන් ප්‍රශ්නය ආපු දවසේ විතරයි කියලා කිව්වොත් හරිද?

ප්‍ර: ඔව්.” (at vide page 155-156 of the Appeal Brief)

21. The fact that the prosecutrix had neither met nor seen the 2nd Appellant when she was taken to the latter's residence was further confirmed by the answers given by the prosecutrix in response to questions posed by the learned Trial Judge. This evidence further undermines the prosecution case that the 2nd Appellant had aided and abetted the 1st Appellant in committing the offence set out in Count No. 4. The prosecutrix testified as follows:

“ප්‍ර: මේ දෙවැනි විත්තිකාරියව නමුත් කවදාවත් දැකලා නැත්නම් ගිහින් මට ඉස්කෝලේ යන්න විදියක් නැහැ කියලා කියන්න හේතුව මොකක්ද?

උ: ඒ ගෙදරට ගිහින් තට්ටු කරාම මෙය තමයි දොර ඇරියේ.

ප්‍ර: ඒ කලින් එක්ක ගිය වෙලාවේදී දෙවැනි විත්තිකාරිය හිටියේ නැද්ද ඒ ගෙදර?

උ: මං දැකලා නෑ ස්වාමිනි.

ප්‍ර: කලින් අවස්ථාවේ පලවෙනි විත්තිකරු එක්කත් යන කොට ඒ ගෙදර වෙන කවද හිටියේ?

උ: ගෙදර කවරුත් පෙනේන හිටියේ නෑ. එක දවසක් නං යාලුවෙක් හිටියා. පිරිමි කෙනෙක් වැඩි වෙලා හිටියා ඉස්සරහ. ” (at vide pages 160-161 of the Appeal Brief)

22. What is discernible from the evidence of the prosecutrix is that the 2nd Appellant had no involvement in facilitating or permitting the 1st Appellant to take the prosecutrix to the residence of the 2nd Appellant. Had the 2nd Appellant aided and abetted the 1st Appellant in committing the offence set out in Count No. 5, it would reasonably be expected that the prosecutrix would have seen or encountered the 2nd Appellant prior to the day on which the school authorities contacted her parents at her residence and informed them that she had not attended school. However, the prosecutrix categorically stated that this was the first occasion on which she had spoken to the 2nd Appellant. She further stated that she had not seen the 2nd Appellant at the residence to which the 1st Appellant had taken her and where he had sexual intercourse with her.

23. At the conclusion of the prosecution case, the 2nd Appellant made a dock statement. In her statement, she stated that she had met the prosecutrix on a particular day when the latter came near her residence crying and informed her that she could not go to school. Thereafter, the 2nd Appellant telephoned a teacher named Piyawathi, whom she knew

at the school, and the said teacher subsequently came to the residence and accompanied the prosecutrix to the school.

24. It is significant to note that the account given by the 2nd Appellant in her dock statement is substantially corroborated by the evidence of the prosecutrix. The prosecutrix, in response to questions during cross-examination, also stated that she had not met or seen the 2nd Appellant prior to the date on which the school authorities discovered that she was absent from school and accordingly contacted her parents.
25. The evidence of the prosecutrix, when considered together with the dock statement of the 2nd Appellant, clearly establishes that the 2nd Appellant did not aid or abet the 1st Appellant in the commission of the alleged offence. Unfortunately, the learned Trial Judge failed to properly evaluate the dock statement of the 2nd Appellant and, more importantly, failed to appreciate its evidentiary value in its proper perspective.
26. When the prosecutrix's account regarding the involvement of the 2nd Appellant, as given in her evidence-in-chief, is contradicted by her own evidence during cross-examination, it would be unsafe to sustain the conviction of the 2nd Appellant. Regrettably, the learned Trial Judge failed to appreciate this material discrepancy in the prosecutrix's testimony when evaluating the evidence against the 2nd Appellant. Hence, it is my considered view that the evidence adduced by the prosecution is insufficient to sustain the conviction of the 2nd Appellant.
27. This Court has also not lost sight of the inadequate evaluation of the evidence by the learned Trial Judge. The learned Trial Judge arrived at certain findings against the 2nd Appellant primarily on the basis of the evidence of the prosecutrix, notwithstanding the existence of some glaring discrepancies in her testimony. In particular, the learned Trial Judge found that the 2nd Appellant had facilitated the 1st Appellant in committing the rape by providing him with the key to a room. However, this finding appears to be inconsistent with the prosecutrix's own evidence that she met the 2nd Appellant for the first time only when the prosecutrix came to know that the school authorities had contacted her parents regarding her absence from school. In my view, this material discrepancy warranted careful consideration by the learned Trial Judge, particularly in

determining whether there was sufficient evidence to establish the involvement of the 2nd Appellant in the commission of the offence.

28. It was further contended that the learned High Court Judge had failed to assess the probabilities of the prosecutrix's evidence as well as the evidence of PW2.
29. Referring to page 148 of the appeal brief, learned Counsel for the 1st Appellant submitted that the evidence of PW1 corroborates the defence version, namely, that PW1 was engaged in an affair with another person.
30. The credibility of PW1's evidence was further challenged on behalf of the 1st Appellant on the basis that, although she testified that she had been raped on three occasions, the history she provided to the doctor referred to only two incidents.
31. According to the prosecutrix, on the first occasion, the 1st Appellant had sexual intercourse with her for the first time at a place near her school. On the second occasion, the 1st Appellant took her to a house in Weerawila, where he had sexual intercourse with her. On the third occasion, which occurred on the day preceding the day on which the school called her parents, the 1st Appellant had sexual intercourse with her at the house situated behind the school.
32. However, the history given by the prosecutrix to the Judicial Medical Officer (JMO) is inconsistent with her evidence-in-chief. According to the history she gave to the JMO, the 1st Appellant had intercourse with her for the first time at a house in Weerawila on 10.01.2012. She further stated that, on the second occasion, the 1st Appellant had intercourse with her at a house behind the school.
33. Thus, it is further observed that, in the history given to the JMO, the prosecutrix mentioned only two instances of sexual intercourse by the 1st Appellant, as opposed to her evidence-in-chief, where she stated that the 1st Appellant had intercourse with her on three separate days.
34. It must be emphasized that a Court may disregard trivial contradictions and inconsistencies, particularly where the prosecutrix has testified several years after the

alleged incident. However, where such infirmities relate to principal events and material facts, they cannot be treated as mere discrepancies arising from the passage of time. Such inconsistencies would undoubtedly undermine the credibility and reliability of her testimony and, consequently, render it unsafe to base a conviction of the accused solely upon such evidence.

35. In assessing the nature and significance of contradictions and omissions, the following authorities provide valuable guidance.

36. In ***The Attorney General vs. Sandanam Pitchai Mary Theresa* [2011] 2 SLR 292**, the court held that:

“Whilst internal contradictions or discrepancies would ordinarily affect the trustworthiness of the witness statement, it is well established that the Court must exercise its judgment on the nature of the inconsistency or contradiction and whether they are true material to the facts in issue.”

37. In the case of ***Mohamed Niyas Naufer and others vs. Attorney General* (SC. 01/2006 decided on 08/12/2006)**, the Court observed that;

“When faced with contradictions in a witness's testimonial, the Court must bear in mind the nature and significance of the contradictions, viewed in light of the whole of the evidence given by the witness.”

38. In ***State of Rajasthan vs. Smt. Kalki & Anr., AIR 1981 SC 1390***, while dealing with this issue, the Supreme Court observed as under:

“In the depositions of witnesses, there are always normal discrepancies, however honest and truthful they may be. These discrepancies are due to normal errors of observation, normal errors of memory due to lapse of time, due to mental disposition such as shock and horror at the time of the occurrence, and the like. Material discrepancies are those which are not normal, and not expected of a normal person.”

39. Evidently, the Judicial Medical Officer who examined the prosecutrix obtained a vaginal swab, which was thereafter sent to GeneTech for DNA analysis. Similarly, a blood sample obtained from the 1st Appellant was also sent for DNA analysis. Following the analysis, GeneTech submitted a report to the Court. However, the prosecution did not seek to lead the said DNA report in evidence at the trial.
40. During the pendency of the appeal, an application was made on behalf of the 1st Appellant under Section 329 of the Code of Criminal Procedure Act, seeking permission to adduce the said report in evidence. This Court allowed the application. Accordingly, the scientist who conducted the DNA profiling of the samples obtained from the prosecutrix and the 1st Appellant testified before the High Court, and the said report was marked in evidence as 'X'.
41. According to the findings set out in Report 'X'1 issued by GeneTech, the two vaginal smears contained DNA of a female human individual, and no detectable amount of DNA belonging to the 1st Appellant was found in either of the two vaginal smears. Most significantly, the DNA profiles obtained from P3-VSM1 and P3-VSM2 did not match the DNA profile of the 1st Appellant. This indicates that the DNA contained in the two vaginal smears marked P3 did not originate from the 1st Appellant.
42. The significance of these findings has to be considered in the backdrop of the evidence of the prosecutrix, the JMO, and PW11, Kadiragamanadan Mohan, who conducted the DNA analysis of the specimens obtained from the prosecutrix and the 1st Appellant. In her testimony, the prosecutrix stated that the 1st Appellant ejaculated during sexual intercourse and that she observed a whitish substance on her genitals at that time. According to the JMO, the prosecutrix was examined by him within 48 hours of the alleged incident, and it was he who obtained the vaginal smears from her. The JMO further opined that spermatozoa could remain alive in the vagina for up to 48 hours following sexual intercourse.
43. Thus, having regard to the period that elapsed between the alleged incident and the examination of the prosecutrix by the JMO, there was a significant possibility of detecting spermatozoa in her vagina. PW11, in his testimony, stated that spermatozoa could remain alive in the vagina for up to 72 hours following sexual intercourse.

44. Nevertheless, the DNA analysis did not yield any evidence corroborating the prosecution's allegation that it was the 1st Appellant who had sexual intercourse with the prosecutrix. The most that can be inferred from the expert evidence is that the prosecutrix had sexual intercourse with a person recently prior to her examination by the JMO. However, the DNA evidence does not establish that the 1st Appellant was that person.
45. It is true that, as evidenced by the expert testimony, the possibility of detecting spermatozoa or DNA of a perpetrator in a given sample may depend upon various factors. Nevertheless, the fact that no DNA of the 1st Appellant was detected in the vaginal smears of the prosecutrix assumes significance when considered in the light of the manner in which she described the alleged sexual intercourse with the 1st Appellant and the relatively short period that elapsed before she was subjected to judicial medical examination.
46. Further, although it was elicited that exposure of vaginal smears to high temperatures may affect the detection of spermatozoa or the perpetrator's DNA, the same samples were found to contain DNA attributable to a female human individual, while no DNA of the 1st Appellant was detected. If the absence of the 1st Appellant's DNA is attributed to improper storage or exposure to high temperature, it is pertinent to consider how the female DNA remained detectable in the same samples. In these circumstances, the absence of DNA belonging to the 1st Appellant in the vaginal smears materially undermines the credibility of her testimony that it was the 1st Appellant who had sexual intercourse with her.
47. In these circumstances, where the scientific evidence does not support the prosecution version and, instead, raises a reasonable doubt as to the identity of the person who had sexual intercourse with the prosecutrix, such doubt must necessarily inure to the benefit of the 1st Appellant.
48. It is a fundamental principle of criminal law that the prosecution must prove its case beyond reasonable doubt on the strength of its own evidence and not on the weakness of the defence. Accordingly, even if the defence version is rejected in its entirety, where

the identity of the Appellant as the perpetrator remains doubtful, the Appellant is entitled to the benefit of that doubt; no conviction can safely be sustained.

49. Having considered the aforementioned facts and circumstances of the present case, I am unable to agree with the findings of the learned Trial Judge.

50. For the foregoing reasons, the convictions and sentences imposed on the Appellants by the learned High Court Judge of Hambantota on 18.10.2023 are hereby set aside, and the Appellants are acquitted of the charges. Accordingly, the appeal is allowed.

Judge of the Court of Appeal

P. Kumararatnam, J.

I agree

Judge of the Court of Appeal